

		The terminating, issue, or evidentiary sanctions proposed by Defendant ask the Court to assume the ACU would have provided evidence favorable to Defendant. The loss of evidence was likely due to the lack of diligence of Plaintiff's counsel or its storage vendor. However, based on the evidence before the Court at this stage, it remains speculative whether the ACU would have provided evidence more favorable to Plaintiff or Defendant. Defendant may make such arguments to the jury and/or request related jury instructions regarding loss of evidence. Defendant does not request monetary sanctions in the motion. Based on the foregoing, the sanctions requested in the motion go beyond the purpose of sanctions provided by the Code of Civil Procedure. Therefore, the motion is denied as to discovery sanctions without prejudice to Defendant's ability to seek relief via other means.
12	Uriarte v. Van Express, Inc. 2021-01221840 Motion to Vacate Judgment of Dismissal	Plaintiffs Richard Uriarte and Sylvia Uriarte's unopposed motion to vacate the Judgment of Dismissal dated November 10, 2025, is DENIED. Plaintiffs move for mandatory relief under Code of Civil Procedure section 473, subdivision (b) which provides, "whenever an application for relief is made <u>no more than six months</u> after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk ..., or (2) resulting default judgment or dismissal entered against his or her client . . ." [Emphasis added.] Here, the application for relief is untimely. The court ordered the Complaint dismissed on 10/7/25, but Plaintiff did not file the Motion to vacate until 4/21/25, more than six months after the dismissal. (ROA 224, 254) Although the request to vacate the Judgment of Dismissal ("Judgment") was timely filed within 6 months of the entry of the Judgment, it would be futile to set aside the Judgment. (See <i>Bowen v. Cowett</i> (1963) 216 Cal.App.2d 766, 771 ["Since setting aside the formal judgment entered March 13, 1959 would still leave the decisions of February 16, 1959 operative and invulnerable to Section 473 it would be futile to set aside said judgment. For that reason the judgment of dismissal of appellants' suit against respondent was proper."].) Plaintiffs to give notice.
13	Luna v. Hyundai motor America 2023-01339475	The Motion for Statutory Penalties by Plaintiffs Santiago Uriel Flores Luna and Jonathan Flores Lunais is DENIED. Plaintiffs seek penalties of \$50 per day for Defendant's failure to timely complete the vehicle repurchase pursuant to the